

U.P. Institutional Finance Department Research Assistants' Service Rules, 2000

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State of Uttar Pradesh - Act

U.P. Institutional Finance Department Research Assistants' Service Rules, 2000

UTTAR PRADESH

India

U.P. Institutional Finance Department Research Assistants' Service Rules, 2000

Rule U-P-INSTITUTIONAL-FINANCE-DEPARTMENT-RESEARCH-ASSISTANTS-SERVICE-RULES-2000 of 2000

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U.P. Institutional Finance Department Research Assistants' Service Rules, 2000

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In exercise of the powers conferred by the proviso to Article 309 of the Constitution and in supersession of all existing rules and orders on the subject, the Governor is pleased to make the following rules regulating recruitment and the conditions of service of persons appointed to the Uttar Pradesh Institutional Finance Department Research Assistants' Service:

Part I

General

1.

Short title and commencement.

(1)

These rules may be called the Uttar Pradesh Institutional Finance Department Research Assistants' Service Rules, 2000.

(2)

They shall come into force at once.

2.

Status of the service.

- The Uttar Pradesh Institutional Finance Department Research Assistants' service is a service comprising Group 'C' posts.

3.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context,-

(a)

"Act" means the Uttar Pradesh Public Services (Reservation for Scheduled Castes, Scheduled Tribes and other Backward Classes) Act, 1994;

(b)

"Appointing authority" means the Director, Institutional Finance and Sarvhit Beema, Uttar Pradesh;

(c)

"Citizen of India" means a person, who is or is deemed to be citizen of India under Part II of the Constitution;

(d)

"Commission" means the Uttar Pradesh Public Service Commission;

(e)

"Constitution" means the Constitution of India;

(f)

"Government" means the State Government of Uttar Pradesh;

(g)

"Governor" means the Governor of Uttar Pradesh;

(h)

"Member of the service" means a person substantively appointed under these rules or the rules or orders in force prior to the commencement of these rules to a post in the cadre of the service;

(i)

"Other backward classes of citizens" means the backward classes of citizens specified in Schedule one of the Act;

(j)

"Service" means the Uttar Pradesh Institutional Finance Department Research Assistant's service;

(k)

"Substantive appointment" means an appointment, not being an ad hoc appointment, on a post in the cadre of the service, made after selection in accordance with the rules, and, if there are no rules, in accordance with the procedure prescribed for the time being by executive instructions issued by the Government;

(l)

"Year of recruitment" means a period of twelve months commencing from the first day of July of a calendar year.

Part II

Cadre

4.

Cadre of service.

(1)

The strength of the service shall be such as may be determined by the Government, from time to time.

(2)

The strength of the service shall, until orders varying the same are passed under sub-rule (1), be as given below :

Name of the post

Number of post

Permanent

Temporary

Total

Research Assistant

7

-

7

Provide that-

(i)

the appointing authority may leave unfilled or the Governor may hold in abeyance vacant post without thereby entitling any person to compensation; or

(ii)

the Governor may create such additional permanent or temporary posts as he may consider proper

Part III ? Recruitment

5.

Source of recruitment.

- Recruitment to a post in the Service shall be made by direct recruitment through the Commission.

6.

Reservation.

- Reservation for the candidates belonging to the Schedule Castes, Schedule Tribes and other categories shall be in accordance with the Act, and the Uttar Pradesh Public Services (Reservation for Physically Handicapped, Dependents of Freedom Fighters and Ex-Servicemen) Act, 1993, as amended from time to time, and the orders of the Government in force at the time of the recruitment.

Part IV ? Qualifications

7.

Nationality.

- A candidate for direct recruitment to a post in the service must be-

(a)

a citizen of India, or

(b)

a Tibetan refugee who came over to India before 1st January, 1962 with the intention of permanently settling in India; or

(c)

a person of Indian origin who has migrated from Pakistan, Burma, Sri Lanka or any of the East African countries of Kenya, Uganda and the United Republic of Tanzania (formerly Tanganyika and Zanzibar) with the intention of permanently settling in India :

Provided that a candidate belonging to category (b) or (c) above must be a person in whose favour a certificate of eligibility has been issued by the State Government:

Provided further that a candidate belonging to category (b) will also be required to obtain a certificate of eligibility granted by the Deputy Inspector General of Police, Intelligence Branch, Uttar Pradesh :

Provided also that if a candidate belongs to category (c) above, no certificate of eligibility will be issued for a period of more than one year and the retention of such a candidate in service beyond a period of one year, shall be subject to his acquiring Indian citizenship.

Note.-A candidate in whose case a certificate of eligibility is necessary but the same has neither been issued nor refused, may be admitted to an examination or interview and he may also be provisionally appointed subject to the necessary certificate being obtained by him or issued in his favour.

8.

Academic qualification.

- A candidate for direct recruitment to a post in the service must possess a Post Graduate degree in Economics or Commerce or Statistics or Mathematics or Mathematical Statistics from a University established by law in India or a qualification recognised by the Government as equivalent thereto.

Preferential.-Preference will be given to a candidate who has knowledge of subjects relating to Institutional Finance such as Banking, Public Finance and Financial organisations.

9.

Preferential qualification.

- A candidate who has-

(i)

served in the Territorial Army for a minimum period of two years, or

(ii)

obtained a 'B' certificate of National Cadet Corps,

shall other things being equal, be given preference in the matter of direct recruitment.

10.

Age.

- A candidate for direct recruitment must have attained the age of twenty-one years and must not have attained the age more than thirty-five years on the first day of July of the calendar year in which vacancies for direct recruitment are advertised by the Commission :

Provided that the upper age limit in the case of candidates belonging to Scheduled Castes, Scheduled Tribes and such other categories as may be notified by the Government, from time to time, shall be greater by such number of years as may be specified.

11.

Character.

- The character of a candidate for direct recruitment to a post in the service must be such as to render him suitable in all respects for employment in Government Service. The appointing authority shall satisfy itself on this point.

Note.-Persons dismissed by the Union Government or a State Government or by a Local Authority or a Corporation or Body owned or controlled by the Union Government or a State Government shall be ineligible for appointment to any post in the Service. Persons convicted of an offence involving moral turpitude shall also be ineligible.

12.

Marital status.

- A male candidate who has more than one wife living or a female candidate, who has married a man already having a wife living shall not be eligible for appointment to a post in the service :

Provided that the Government may, if satisfied that there exist special grounds for doing so, exempt any person from the operation of this rule.

13.

Physical fitness.

- No candidate shall be appointed to a post in the service unless he be in good mental and bodily health and free from any physical defect likely to interfere with the efficient performance of his duties. Before a candidate is finally approved for appointment, he shall be required to produce a Medical Certificate of fitness in accordance with the rules framed under Fundamental Rule 10, contained in Chapter III of the Financial Hand-Book, Volume II, Part III.

Part V

Procedure for Recruitment

14.

Determination of vacancies.

- The appointing authority shall determine and intimate to the Commission the number of vacancies to be filled during the course of the year of recruitment as also the number of vacancies to be reserved for candidates belonging to Scheduled Castes, Scheduled Tribes and other categories under Rule 6.

15.

Procedure for direct recruitment.

(1)

Application for being considered for selection shall be invited by the Commission in the pro forma prescribed in the advertisement issued by the Commission.

(2)

The Commission shall, having regard to the need for securing due representation of the candidates belonging to the

Scheduled Castes, Scheduled Tribes and other categories in accordance with Rule 6, call for interview such number of candidates, who fulfil the requisite qualifications, as they consider proper.

(3)

The Commission shall prepare a list of candidates in order of their proficiency as disclosed by the marks obtained by each candidate in the interview. If two or more candidates obtained equal marks, the candidate senior in age shall be placed higher in the list. The Commission shall forward the list to the appointing authority.

Part VI

Appointment, Probation, Confirmation and Seniority

16.

Appointment.

(1)

The appointing authority shall make appointment by taking the names of candidates in the order in which they stand in the list prepared under Rule 15.

(2)

If more than one order of appointment are issued in respect of any one selection, a combined order shall also be issued, mentioning the names of the persons in order of seniority as determined in the selection.

17.

Probation.

(1)

A person on substantive appointment to a post in the service shall be placed on probation for a period of two years.

(2)

The appointing authority may, for reasons to be recorded, extend the period of probation in individual cases specifying the date upto which the extension is granted :

Provided that, save in exceptional circumstances, the period of probation shall not be extended beyond one year and in no circumstance beyond two years.

(3)

If it appears to the appointing authority at any time during or at the end of the period of probation 'or extended period of probation that a probationer has not made sufficient use of his opportunities his services may be dispensed with.

(4)

A probationer, whose services are dispensed with under sub-rule (3) shall not be entitled to any compensation.

(5)

The appointing authority may allow continuous service, rendered in an officiating or temporary capacity in a post included in the cadre or any other equivalent or higher post, to be taken into account for the purpose of computing the period of probation.

18.

Confirmation.

(1)

Subject to the provisions of sub-rule (2), a probationer shall be confirmed in his appointment at the end of the period of probation or the extended period of probation if-

(a)

his work and conduct is reported to be satisfactory, and

(b)

his integrity is certified.

(2)

Where, in accordance with the provisions of the Uttar Pradesh State Government Servant Confirmation Rules, 1991 confirmation is not necessary, the order under sub-rule (3) of Rule 5 of those rules declaring that the person concerned has successfully completed the probation shall be deemed to be the order of confirmation.

19.

Seniority.

- The seniority of persons substantively appointed in the tor Service shall be determined in accordance with the Uttar Pradesh Government Servants Seniority Rules, 1991, as amended from time to time.

Part VII ? Pay, Etc.

20.

Scale of pay.

(1)

The scale of pay admissible to persons appointed to a post in the service shall be such as may be determined by the Government, from time to time.

(2)

The scale of pay at the time of the commencement of these rules is given as follows:

Name of post

Scale of pay

Research Assistant

Rs. 5000-150-8000

21.

Pay during probation.

(1)

Notwithstanding any provision in the Fundamental Rules to the contrary, a person on Probation, shall be allowed his first increment in the time scale when he has completed one year of satisfactory service, and second increment after two years service when he has completed the probationary period and is also confirmed.

(2)

The pay during probation of a person, who was already holding a post e under the Government, shall be regulated by the relevant fundamental rules,

(3)

The pay during probation of a person already in permanent Government service shall be regulated by the relevant rules, applicable generally to Government servants serving in connection with the affairs of the State.

22.

Criterion for crossing efficiency bar.

- No person shall be allowed to cross the efficiency bar unless his work, and conduct is found to be satisfactory and unless his integrity is certified.

Part VIII ? Other Provisions

23.

Canvassing.

- No recommendations, either written or oral, other than those required under the rules applicable to the post or service will be taken into consideration. Any attempt on the part of a candidate to enlist support directly or indirectly for his candidature will disqualify him for appointment.

24.

Regulation of other matters.

- In regard to the matters not specifically covered by these rules or special orders, persons appointed to the service shall be governed by the rules, regulations and orders applicable generally to Government servants serving in connection with the affairs of the State.

25.

Relaxation from the conditions of service.

- Where the State Government is satisfied that the operation of any rule regulating the conditions of service of persons appointed to the service causes undue hardship in any particular case, it may, notwithstanding anything contained in the rules applicable to the case, by order, dispense with or relax the requirements of that rule to such extent and subject to such conditions as it may consider necessary for dealing with the case in a just and equitable manner :

Provided that where a rule has been framed in consultation with the Commission, that body shall be consulted before the requirements of the rule are dispensed with or relaxed.

26.

Savings.

- Nothing in these rules shall affect reservations and other concessions required to be provided for the candidates belonging to the Scheduled Castes, Scheduled Tribes and other special categories of persons in accordance with the

orders of the Government issued, from time to time, in this regard.

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